

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

**RESPONDENT HMM CO. LTD.'s RESPONSE TO COMPLAINANT
SAMSUNG's STATEMENT OF MATERIAL FACTS**

Respondent HMM Co. Ltd. ("HMM") respectfully submits this Response to the Complainant Samsung Electronics America, Inc. ("SEA") Statement of Material Facts that was filed with SEA's Opposition to the Motion for Partial Summary Judgment.

1. The available evidence shows that 266 of the containers at issue, carried under 59 bills of lading, were transported aboard a single vessel – the HYUNDAI COLOMBO – which also called at the Port of Los Angeles after calling at the Port of Vancouver on this particular voyage. *Compare* Exhibit 1, B/L No. LCHM06675100 (transporting 1 container from Thailand to Los Angeles with an on board date of July 4, 2021 on voyage number 0119E) *with* Exhibit 2, B/L Nos.: SELM99749200; SELM97959400; SELM94912300; SELM94191400; SELM67681100; LCHM89235402; LCHM89235401; LCHM89235400; LCHM88162214; LCHM88162213;

LCHM88162212; LCHM88162211; LCHM88162210; LCHM88162209; LCHM88162208;
LCHM88162207; LCHM88162206; LCHM88162205; LCHM88162204; LCHM88162203;
LCHM88162202; LCHM88162201; LCHM88162200; LCHM84642100; LCHM84059000;
LCHM83632200; LCHM80745709; LCHM80745708; LCHM80745707; LCHM80745706;
LCHM80745705; LCHM80745704; LCHM80745703; LCHM80745702; LCHM80745701;
LCHM80745700; LCHM70167400; LCHM68744500; LCHM59367400; LCHM56513906;
LCHM56513905; LCHM56513904; LCHM56513903; LCHM56513902; LCHM56513901;
LCHM56513900; LCHM55047100; LCHM47048700; LCHM46266700; LCHM45382200;
LCHM32215904; LCHM32215903; LCHM32215902; LCHM32215901; LCHM32215900;
LCHM24900400; LCHM16531700; LCHM14504900; LCHM13045300 (transporting 266
containers from South Korea and Thailand to Vancouver with onboard dates of July 4 or 13, 2021,
on voyage number 0119E).

Response: Admit.

2. The available evidence shows that container number BMOU5803732 was transported under bill of lading number SELM39158700 from Busan, Korea, to Chicago, IL, via Vancouver in August 2022, aboard the ATHOS on voyage number 0024E. Exhibit 3, B/L No. SELM39158700. HMM bill of lading number SELM02842000, which is not part of the Subject Shipments, shows that on this same voyage, the ATHOS also called at the Port of Tacoma, WA. *See* Exhibit 4, HMM_059916-18.

Response: Admit.

3. For the remaining 19 containers transported under 14 bills of lading, the available evidence indicates that they were carried for all or part of their voyage aboard vessels engaged in U.S.-foreign commerce, but because discovery has not yet concluded and HMM is the custodian

of the relevant data, additional discovery is necessary to verify the voyage path. *See* Exhibit 5, B/L Nos. BUWB9340992, BUWB9340990, BUWB9340989, BUWB9340988, SELM81362800, SELM12118400, BUWB9343319, BUWB9346839, BUWB9343314, BUWB9343290, SELM56816500, SELM25213200, SELM12327400, and SELM71764600. In addition, evidence indicates that the discharge of containers at Vancouver rather than at U.S. ports was a consequence of the unprecedented port congestion during the COVID-19 pandemic, and U.S. intermodal cargo that would otherwise have been delivered to U.S. west coast ports was instead discharged in Vancouver as a logistical accommodation for unprecedented circumstances to alleviate backlogs in the U.S. for cargo that remained on U.S.-bound routes.

Response: Denied as stated. No additional discovery is necessary to determine the facts necessary for the Presiding Officer to dispose of the shipments originating overseas and discharging at a Canadian port. Moreover, SEA does not specify what “data” it would require from HMM, but no additional relevant material is necessary to reach a conclusion on summary judgment with respect to the Subject Shipments. Finally, SEA’s allegation that evidence exists to show that port congestion caused the discharge of containers at Canadian ports rings hollow because SEA does not, in fact, cite to any evidence whatsoever for this proposition.

Respectfully submitted,

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